

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (MOU) is made and entered into between the **Brecksville-Broadview Heights City School District**, by its Superintendent; the **City of Broadview Heights, Ohio**, by and through its Police Department; and the **City of Brecksville, Ohio**, by and through its Police Department, this ____ day of _____ 2022.

This MOU will serve as the written agreement between the **Brecksville-Broadview Heights City School District**, by its Superintendent, (hereinafter "District"); the **City of Broadview Heights Police Department** (hereinafter "BHPD"); and the **City of Brecksville Police Department** (hereinafter "BPD"). This MOU is entered into pursuant to O.R.C. 3313.951 to clarify the purpose of the School Resource Officer ("SRO") program and roles and expectations between the participating entities for both the Brecksville-Broadview Heights City School District Middle School ("Middle School"), located in Broadview Heights, Ohio, and the Brecksville-Broadview Heights City School District PreK-5 Elementary School at Blossom Hill ("Elementary School"), located in Brecksville, Ohio. This MOU provides a series of guidelines and policies relevant to the performance of the SROs and will be the guiding document that officers, school administrators, and students and their caregivers look to for structure and accountability. Nothing in the MOU should be construed as limiting or impeding the basic spirit of cooperation, which exists between the participating entities listed above and all community stakeholders.

I. PURPOSE

This MOU establishes and delineates the mission of the School Resource Officer Program, herein referred to as the SRO Program. Additionally, the MOU clarifies roles and expectations and formalizes relationships between the participating entities to foster an efficient and cohesive program that will build a positive relationship between police officers, school staff, and the students, and will promote a safe and positive learning environment and decrease the number of youths formally referred to the Juvenile Justice System.

II. MISSION

The mission of the SRO Program is to promote school safety by building a positive school climate in which everyone feels safe and students are supported to succeed. The SRO Program also seeks to reduce violent crime committed by and against youth in our community. The SRO Program accomplishes this mission by supporting safe, secure, and orderly learning environments for students, teachers, and staff. SROs will establish a trusting channel of communication with students, parents, and teachers and establish regular feedback opportunities.

The role of the SROs is not to enforce school discipline or punish students. SROs will serve as positive role models to instill in students good moral standards, good judgment and discretion, respect for other students, and a sincere concern for the school community.

SROs will provide information on community resources available to students and parents. Goals and objectives are designed to develop and enhance rapport among youth, families, police officers, school administrators, and the community in order to promote overall student achievement and success.

III. SRO PROGRAM OVERVIEW:

The SRO Program Goals and Aims

1. To prevent and reduce potential harm related to incidents of school violence.
2. To foster a positive school climate based on respect for all children and adults in the school.
3. To create partnerships with behavioral health experts and other care providers in the community for students and family referral.
4. To ensure a safe learning environment for all children and adults who enter the building.

The SRO Program is unique to the community, based on input from the school administration, teachers, faculty, students, families and community members. The program is designed to fulfill four overall roles:

- 1) Law Enforcement
- 2) Positive School Climate/Crime Prevention
- 3) Education
- 4) Security

Law Enforcement Role - SROs are responsible for the majority of law enforcement activities occurring at the school during school hours but not general student discipline. A determination of whether an activity rises to the level of a law enforcement activity shall be at the SROs' discretion after consultation with a school administrator. Parents, students, teachers, and other school personnel should bring complaints about student misbehavior to the school principal and/or designee, rather than to the SROs.

While enforcement is the role of SROs, alternatives to arrest should be used whenever possible, and arrest of students should be a measure of last resort. The SROs' discretion to act remains the

same as that of any other police officer.

Fostering Positive School Climate/Crime Prevention - One of the primary roles SROs fulfill is fostering a positive school climate through relationship-building and crime prevention. Officers will engage in various activities, in consultation with school administrators, teachers, and students, and should strive to build a school culture of open communication and trust between and among students and adults by focusing on officers getting to know students at the school, serving as role models, and working with teachers and administrators to identify students who may be facing challenges and who need additional resources or attention to be successful in school. Crime prevention activities include foot patrols, monitoring previous crime locations, speaking to teachers about reducing the opportunity for crimes to occur, analyzing possible crime patterns, investigating crimes, and patrolling the parking lots. Officers may also complete security surveys analyzing the physical safety of school property and facilities.

Education - SROs should participate in the school community by becoming members of the educational team where appropriate, and by representing the law enforcement community to build positive relationships with youth, their families, and school staff.

Whether talking to students in the hallway or delivering a presentation in the classroom, SROs are embedded in the educational fabric within the school. SROs are expected to be proactive in creating and taking advantage of educational situations, and school administrators are encouraged to leverage this resource.

Security –SROs shall take an active role in providing security at the school. In addition to conducting the above listed crime prevention activities, the SROs will monitor the entrance at the beginning and end of the day as students and staff are arriving and leaving the building. The SROs shall also monitor students and staff who exit and enter the building at recess times and during planned events that occur outside of the building. The SROs shall respond to suspicious circumstances and people whether observed by the SROs or reported by a student, staff member or parent. The SROs will work with school administrators, teachers, staff members, students and parents to continually look for ways to improve safety and security within the school and surrounding area.

IV. OPERATIONAL PROCEDURES

A. Officer Recruitment and Selection

District administrators and the BPD shall agree on guidelines for the selection of officers to serve as SROs in both the District Middle School and Elementary School (one assigned to each building).

The ultimate selection process and appointment of the SROs is completed by the law enforcement agency.

SROs should meet two general criteria:

- 1) Experience as a police officer and commitment to student well-being – SROs must have a minimum of two years’ experience as a patrol officer, be at least 21 years of age, and have interest in juvenile assignments. Interest in working with youth and an interest in student success, juvenile justice, child and adolescent development and psychology, and creating a positive school climate are essential.
- 2) Successful performance – All candidates should have proven performance as reflected by prior performance evaluations. Candidates should be free of significant disciplinary action.

B. Training Requirements

The City of Brecksville shall ensure that any officers assigned as SROs for the District meet all elements of R.C. 3313.951, including qualifications and background requirements, training, and professional development.

Prior to entering service as an SRO, officers shall complete a minimum of 40 hours of initial training approved by the Ohio Peace Officer Training Commission. The training must cover responsibilities and limitations of SROs, Ohio school laws, MOUs, child development, age-appropriate practices for conflict resolution, developmentally informed de-escalation and crisis intervention techniques, working with youth in a school setting, and integrating SROs into a positive school environment. In addition, SROs may receive additional training each year on topics such as trending school-based law enforcement topics, child development, adolescent psychology, trauma, conflict resolution, mental health and addiction, children with disabilities, juvenile and education law and policy, PBIS, and cultural competence.

Finally, the SRO shall be made a Deputy Sheriff by the Cuyahoga County Sheriff and shall take an oath of office to be able to perform the SRO duties hereunder.

C. Chain of Command for SROs

The SROs will be ultimately accountable to the BPD Chain of Command. Moreover, while performing duties at the District’s Middle School and Elementary School, so long as it does not conflict with the SROs’ duties as a police officer, as determined by the BPD, the SROs may additionally receive direction from the Principal of the building or his/her designee and the Supervisor of Safety & Security regarding school-related matters. In the event a conflict arises,

the BPD and District shall work cooperatively on the conflict in order to resolve it. The SROs are expected to cooperate with school officials, including administrators and faculty. The SROs will abide by school policy and respond to the requests of school officials.

D. Duties

The primary functions of the SROs are to help provide a safe and secure learning environment; foster a positive school climate; reduce/prevent crime; serve as an educational resource; and act as a liaison between the schools, the BPD, and the BHPD with respect to the District Middle School, due to its location in Broadview Heights, Ohio. Specific daily assignments to accomplish this function will vary by school.

The SROs and school Principals of the building in which they are located, or his/her designee, will meet on a regular basis to discuss plans and strategies to address specific issues or needs that may arise. As required by law, SROs should never be assigned to duties within school in place of or in lieu of a certified teacher.

In the performance of his/her job, the SROs' duties may include but will not be limited to:

- 1) Enforcing criminal law and protect the students, staff, and public at large against criminal activity;
- 2) Maintaining a visible presence in and out of the building;
- 3) Initiating law enforcement actions when needed;
- 4) Fostering mutually respectful relationships with students and staff to support a positive school climate;
- 5) Providing information concerning questions about law enforcement topics to students and staff;
- 6) Providing classroom instruction, in consultation with the assigned teacher, on a variety of topics including, but not limited to, safety, public relations, occupational training, leadership, and life skills;
- 7) Coordinating investigative procedures between the SRO, BHPD (for the Middle School), BPD and school administrators.
- 8) If a crime is committed on the District's Middle School campus, the SRO will collect information and conduct a preliminary investigation to determine an appropriate response. If a police report is needed, BHPD will be contacted by the SRO or school administrator to complete the report and investigate the crime.
- 9) If a crime is committed on the District's Elementary School campus, the SRO will collect information and conduct a preliminary investigation to determine an appropriate response. If a police report is needed, BPD will be contacted by the SRO or school administrator to complete the report and investigate the crime.
- 10) If enforcement action on criminal matters occurring on the District's Middle School campus is necessary, it will be made by BHPD in conjunction with the SRO.

If the SRO witnesses or responds to a crime in progress or has probable cause to believe a crime was just committed, the SRO may take immediate enforcement action if deemed necessary. The SRO will immediately notify BHPD and school administrators of the enforcement action. If BHPD deems it appropriate to consult with school administrators concerning any enforcement action taken, they may do so at their discretion. The SRO may participate in this consultation if requested to do so. The final authority to take enforcement action will be with the BHPD.

- 11) If enforcement action on criminal matters occurring on the District's Elementary School campus is necessary, it will be made by BPD in conjunction with the SRO. If the SRO witnesses or responds to a crime in progress or has probable cause to believe a crime was just committed, the SRO may take immediate enforcement action if deemed necessary. The SRO will immediately notify BPD and school administrators of the enforcement action. If BPD deems it appropriate to consult with school administrators concerning any enforcement action taken, they may do so at their discretion. The SRO may participate in this consultation if requested to do so. The final authority to take enforcement action will be with the BPD.
- 12) Attending school special events as needed; and
- 13) Collecting data on SRO activities (arrest, citations, etc.).

The list of duties is not exhaustive, and the SRO may be asked to perform other tasks that fall within the scope of this MOU.

E. Uniform and Equipment

The SROs are to be in the uniform of the BPD. The BPD will provide the assigned personnel with such basic equipment as may be necessary and reasonable to carry out the duties anticipated by this MOU.

F. Daily Schedule

The BPD Chief of Police and the BPD will make reasonable efforts to accommodate the needs of the District when determining the SROs' schedules with consideration of the City of Brecksville's needs taking priority. The SROs hours will follow those of the teaching staff in the building in which they are located.

G. Absence/Substitutions

The District understands and agrees that any short-term fill-in officer needed due to an SRO's absence for medical, personal leave, vacation, or any emergency, would not need to meet the same requirements as set out in Section IV, as such placement is temporary. To the extent possible, the District and the BPD should develop and agree on a protocol for assigning and using substitute

officers when one of the regular SROs is unavailable. Should one of the regularly assigned SROs become unavailable during the term of this agreement, the BPD's Chief of Police and the District's Superintendent, or their designees, will meet to determine an appropriate replacement officer.

H. Special Events

The SROs may work special events on an as-needed basis to be determined by the BPD and the school administrators, consistent with this MOU.

I. Summer Activity

SROs should accomplish as much of the required training as possible during the summer months when school is not in session. The SRO assigned to the District's Elementary School will still be involved in summer projects coordinated by the District and the City of Brecksville upon completion of the academic school year. Further, the SRO assigned to the Middle School may still be involved in some summer projects with the District; however, the SRO will spend the majority of this time on BPD assignments.

J. Role in Responding to Criminal Activity

One of the roles of SROs, as law enforcement officers, is to engage in traditional criminal investigation and report-taking. As police officers, SROs have the authority to issue warnings, make arrests, and use alternatives to arrest at their discretion. SROs however, perform their duties mindful of the parties' common goal of supporting student success. The following procedures will help SROs be effective as possible in this role:

- 1) School staff will contact SROs to inform them of violent or other criminal activity that occurs on the school campus, while being mindful of supporting the common goal of student success. SROs will inform the BHPD Chief or Designee and school administration of all criminal activity they observe on the District's Middle School Campus. Moreover, the SROs will inform the BPD Chief or Designee and school administration of all criminal activity they observe on the District's Elementary School campus.
- 2) For any offense on the District's Middle School property, SROs, working cooperatively with the BHPD and the school administration, will be mindful of supporting the common goal of student success when making decisions regarding arrest and criminal involvement. Certain offenses (felonies), such as sex offenses, weapons offenses, and any offenses of violence will normally require the filing of charges at the SROs' and the BHPD's Police Chief or Designee's discretion but

should be evaluated on a case-by-case basis in consultation with school officials, where such consultation is appropriate based on the SROs' and members of the BHPD assigned to investigate the offense, knowledge and training. The SROs' powers to arrest will be governed by the Ohio Revised Code.

3) For any offense on the District's Elementary School property, SROs, working cooperatively with the BPD and the school administration, will be mindful of supporting the common goal of student success when making decisions regarding arrest and criminal involvement. Certain offenses (felonies), such as sex offenses, weapons offenses, and any offenses of violence will normally require the filing of charges at the SROs' and the BPD's Police Chief or Designee's discretion but should be evaluated on a case-by-case basis in consultation with school officials, where such consultation is appropriate based on the SROs' and members of the BPD assigned to investigate the offense, knowledge and training. The SROs' powers to arrest will be governed by the Ohio Revised Code.

4) The SROs and school officials shall put into place plans, such as de-escalation techniques, conflict resolution and restorative justice practices, which may serve as an alternative to arrest.

K. Role in School Policy Violations

SROs are not school disciplinarians and violations of the Student Code of Conduct or school rules that are not criminal matters should always be handled by school administration, faculty, and staff, not SROs. SROs should not directly intervene unless the situation directly presents an imminent threat to the health, safety, and security of the student or another person in the school.

In such cases, the SROs will employ de-escalation techniques as appropriate. School discipline is the responsibility of the appropriate school administrator and clear guidelines on the SROs involvement should be developed and distributed to school staff.

The SROs will report school policy violations through the proper channels to be handled by the school administration. It is the responsibility of the SROs to become familiar with the Student Handbook or Student Code of Conduct at each building, but it is not the responsibility of the SROs to enforce the rules in these documents.

L. Sharing of Information

Communication and information sharing should be followed to facilitate a free flow of information between school officials and the SROs:

- 1) Sharing of information will be governed by the Ohio Revised Code, the Ohio Administrative Code, Ohio's Public Records Law, the Family Education Rights and Privacy Act codified as 20 USC 1232g et seq. ("FERPA"), the Ohio Student-Records Privacy Act codified at R.C. 3319.321 ("OSRPA"), and relevant BHPD, BPD and District policies.
- 2) The sharing of arrest-related information by the BHPD Police Chief or Designee and the BPD Police Chief or Designee with school administrators upon request, and at the direction of the BHPD Police Chief or Designee or the BPD Police Chief or Designee, will involve the dissemination of arrest reports and calls for service filed with the BHPD, or BPD or from other police agencies coming into contact with students from the District. The SRO may assist the BHPD Police Chief or Designee and the BPD Police Chief or Designee, if requested to do so.
- 3) Juvenile fingerprints and photos as part of the Arrest Record will not be shared by the BHPD Police Chief or designee, the BPD Police Chief of designee, or the SROs.
- 4) If an SRO is aware of information on a student that is officially obtained by the BHPD or BPD, which reflects that the student is in violation of District Board Policy, the Student Code of Conduct, or Athletic Codes of Conduct, the SRO may forward that information to school administration.
- 5) If a student under the age of 18 is an uncharged suspect in a crime, his/her information will not be released unless authorized by the BHPD Chief of Police or the BPD Chief of Police.
- 6) Information which the SRO obtains from school personnel and which deals with criminal or possible criminal intelligence on the District's Middle School campus or involves a District Middle School student will be forwarded to the BHPD by the SRO as a criminal justice file. District administration shall be made aware in a timely fashion if this occurs. This file may be shared with other BHPD personnel and criminal justice agencies, but will not be part of the student's school record.
- 7) Information which an SRO obtains from school personnel and which deals with criminal or possible criminal intelligence on the District's Elementary School campus or involves a District Elementary School student will be forwarded to the

BPD by the SRO as a criminal justice file. District administration shall be made aware in a timely fashion if this occurs. This file may be shared with other BPD personnel and criminal justice agencies, but will not be part of the student's school record.

- 8) Hearsay information or rumors alone will be used by the SRO only in intelligence gathering or to validate the need for further investigation.
- 9) Any information that is obtained by the SRO that pertains to criminal activity occurring outside the City of Broadview Heights limits shall be relayed to the BHPD. The BHPD may relay that information to that police department's jurisdiction.
- 10) When any felony occurs on the District's Middle School campus, the SRO will contact the BHPD Chief or designee and the BPD Officer in Charge (OIC).
- 11) When any felony occurs on the District's Elementary School campus, the SRO will contact the BPD Chief of Police or designee and the BPD OIC.
- 12) Any crime that prompts a response to a request for public records from the City of Broadview Heights, the City of Brecksville or the District will require the SRO to notify the BHPD's Police Chief or designee and the BPD's Police Chief or designee, as applicable based on the request.
- 13) Any time the District's Middle School building is evacuated other than during a drill, the SRO will contact and advise CVD Radio. As soon as practicable, the SRO and/or CVD Radio will contact the BHPD and the BPD. Moreover, any time the District's Elementary School building is evacuated other than during a drill, the SRO will contact and advise CVD Radio. Then, as soon as practicable, the SRO and/or CVD Radio will contact the BPD.
- 14) The SROs shall have access to any public records maintained by the school to the extent allowed by law. Law enforcement officials may have access to confidential information in emergency situations based on the seriousness of the threat to someone's health or safety, time sensitivity, and the direct relationship of the information to the emergency, to the extent permitted under FERPA and OSRPA.
- 15) The BPD, BHPD, the SROs and any BPD and BHPD employees acknowledge their obligation under FERPA to keep confidential any personally identifiable student information provided or obtained pursuant to this MOU, or pursuant to the SROs'

performance of job duties as SROs under this MOU.

M. Role in Locker, Vehicle, Personal, and Other Searches

Searches of lockers, vehicles, personal searches, and other searches shall generally be undertaken by school administrators and not by SROs.

SROs will abide by District search and seizure policies.

Unless there is a serious and immediate threat to student, teacher, or school safety, the Superintendent of Schools in concert with the building Principals shall have final authority in the building for all noncriminal matters.

The SROs may perform searches independent of the school administration only during emergency situations and where criminal activity is suspected. SROs will abide by board policy regarding search and seizure, as well as the following:

- i. Strip searches of students by SROs are prohibited.
- ii. Unless there is a serious and immediate threat to a student, a teacher, or public safety, SROs shall not initiate or participate in other physically invasive searches of a student.

For noncriminal matters, unless there is a serious and immediate threat to student, teacher, or school safety, the Superintendent in concert with the building principals, shall have final authority in the building.

N. Limits on Interrogations and Arrests

1. **Interrogations** – Questioning and/or interrogating students on both disciplinary incidents and conduct that could result in criminal charges is generally handled by school administrators and not SROs. SROs may participate in the questioning of a student about conduct that could result in criminal charges only after informing the student of his or her Miranda Rights in age-appropriate language and informing the student's parent(s) or guardian(s). Parents/guardians shall be allowed sufficient time to arrive at school to be present for interrogation.
2. **Arrests** – Absent extenuating circumstances, incidents involving public order

offenses, including disorderly conduct, profanity, and fighting that do not involve serious physical injury or a weapon, should be considered school discipline issues to be handled by school administrators rather than criminal law issues warranting formal law enforcement interventions.

- i. Building Principals and the Superintendent or his/her designee shall be consulted prior to an arrest of a student when practical.
 - ii. The student's parent(s) or guardian(s) shall be notified of his or her arrest immediately or as soon as practical and in a timely manner.
 - iii. Unless there is a serious and immediate threat to student, teacher, or public safety, SROs shall not use physical force or restraints on students.
3. Any investigation of a reported crime occurring on the District's Middle School campus and/or subsequent prosecution of a defendant or delinquent juvenile offender attending the District's Middle School should be conducted by the BHPD. The SROs may assist the BHPD in the investigation and prosecution as requested.
4. Any investigation of a reported crime occurring on the District's Elementary School Campus and/or subsequent prosecution of a defendant or delinquent juvenile offender attending the District's Elementary School should be conducted by the BPD. The SROs may assist the BPD in the investigation and prosecution as requested.

O. Role in Critical Incidents

The SROs will be familiar with the Emergency Operations Manual of the District. During critical incidents occurring when the SROs are present, the SROs will normally act as a liaison among school administrators, Police personnel, and other emergency resources if practical.

P. Role in Truancy-Issues

Truancy will be handled by school personnel. The SROs will act as a liaison between the school and police personnel should police involvement become necessary due to safety concerns.

V. SCHOOL DISTRICT RESPONSIBILITIES

The District shall provide the SROs of each campus and any SROs' supervisor the following materials and facilities, which are deemed necessary to the performance of the SROs' duties:

- 1) Access to a properly lighted private office, which shall contain a telephone, a secure computer, which may be used for general business purposes.
- 2) A location for files and records which can be properly locked and secured.
- 3) A desk with drawers, chair, work table, filing cabinet, and office supplies.
- 4) The opportunity for SROs to address teachers, school administrators and student families about the SRO program, goals, and objectives.
- 5) The opportunity to provide input regarding criminal justice problems relating to students.
- 6) The opportunity to address teachers and school administrators about criminal justice problems relating to students during in-service workdays.
- 7) The District Emergency Operations Manual, Crisis Plan, Student Handbook/Code of Conduct and other related materials as deemed appropriate.
- 8) School staff designee for referrals for counseling and other school-based and/or community based supportive services for students and families.

The District shall ensure that all staff members are aware of the roles and responsibilities of the SROs, including how to report any Student Code of Conduct or board policy violations, or potentially criminal incidents.

VI. CRISIS PLANNING

The District, the BHPD, BPD and the Broadview Heights Fire Department will coordinate crisis planning and training. Each entity will be involved in updates and creation of new crisis plans. Consistency throughout the District should be adhered to.

Lock-down drills shall be included as part of the District's preparedness plan. The BHPD and BPD shall be included in the creation of lock-down procedures so that first responders are familiar with procedures. Lock-down procedures should be trauma-informed and consistent throughout the District.

VII. REVIEWING THE MOU AND THE SRO PROGRAM

The assigned parties shall review the MOU/SRO Program annually and make adjustments as needed. Any revisions will be reflected in an updated MOU.

Complaints against the SROs shall follow the normal complaint process of the BPD directed to the BPD's Chief or designee and include notice to the appropriate school administrators. This process will be made known to parents and students through the BPD.

VIII. PROBLEM RESOLUTION

Unforeseen difficulties or questions will be resolved by negotiation between the Superintendent of the District and the Chief of the BPD or their designees, or where needed relative to the Middle School, the Chief of the BHPD or designee.

IX. TERM

The term of the MOU shall be for three (3) years, commencing on September 1, 2022 and ending on August 31, 2025. The term may be extended upon agreement of the parties.

X. TERMINATION OF AGREEMENT

The parties agree that any party may terminate this MOU upon 30-days written notice without penalty. In the event that circumstances dictate that a prompt termination of this MOU is warranted, and the parties concur, the 30-day written notice shall be waived.

XI. COMPENSATION

Upon receiving quarterly invoices from the City of Brecksville on the first day of September, December, March and June of each year of this Agreement, the District shall remit payment to the City of Brecksville within thirty (30) days of receiving the invoice. The total amount of payment for each year of this Agreement to be remitted to the City of Brecksville shall reflect seventy (70%) of the compensation of the SRO assigned to the Middle School, paid by the District in equal quarterly installments each year. The City of Brecksville is responsible for the remaining thirty percent (30%) of the Middle School SRO's compensation. The City of Brecksville is further responsible for one hundred percent (100%) of the compensation of the SRO assigned to the District's Elementary School, with the District bearing no responsibility related to the Elementary School SRO's compensation.

In the event there are supplemental costs associated with the Middle School SRO working hours in excess of forty (40) hours per work week (Sunday through Saturday) at the request of the

District, the District shall compensate the Middle School SRO at one and one-half (1 ½) times the amount of the SRO's hourly rate. Such compensation shall not be remitted unless the Middle School SRO received prior approval from the District to perform duties beyond his/her regular work week. Additionally, the SRO is required to provide the District and the BPD with supporting documentation for any and all additional time worked in excess of forty (40) hours in a given work week. Any additional compensation (e.g., overtime) earned by the Middle School SRO in accordance with this paragraph shall be paid by the District via separate check.

XII. INDEPENDENT CONTRACTOR

The BPD and the officers assigned as SROs pursuant to this MOU agree to perform all services pursuant to this MOU as independent contractors, and further agree that no employment-related benefits or withholdings shall be paid for or made to the BPD and/or the School Resource Officer by the Board of Education. In the event that any benefits or withholdings are later required by operation of law, or later determined to be required, the BPD agrees to reimburse the Board of Education within ten (10) days following receipt of an invoice thereof.

XIII. INSURANCE

The City of Brecksville shall maintain public liability insurance which shall cover the duties performed by the school resource officers and which shall name the District as an additional insured. The District will also maintain public liability insurance which will cover the school resource officers' duties and responsibilities as specified herein and will also name the City of Brecksville as an additional insured on said policy.

XIV. UNENFORCEABLE PROVISION

If any term or provision of this MOU is held by a court of competent jurisdiction to be unenforceable or invalid, the remaining provisions of this MOU shall remain in effect as if the illegal, unenforceable, or invalid term had never been contained therein.

SIGNATURE OF PARTIES & SIGNATURE DATE

CITY OF BRECKSVILLE, OHIO

By: _____
Jerry N. Hruby, Mayor/Safety Director

Date

BRECKSVILLE POLICE DEPARTMENT

By: _____
Stanton A. Korinek, Chief of Police

Date

CITY OF BROADVIEW HEIGHTS, OHIO

By: _____
Samuel J. Alai, Mayor

Date

BROADVIEW HEIGHTS POLICE DEPARTMENT

By: _____
Steven Raiff, Chief of Police

Date

BRECKSVILLE-BROADVIEW HEIGHTS SCHOOL DISTRICT

By: _____
Joelle Magyar, Superintendent

Date

Approved As To Form Only

By: _____
David J. Matty, Law Director
City of Brecksville

Date

Approved As To Form Only

By: _____
Vince Ruffa, Law Director
City of Broadview Heights

Date